

Master Services Agreement

Dated _____

Between

FuturMaster SAS

And

**pladis France,
pladis Belgium SRL,
Koninklijke Verkade NV**

Contents

1	Interpretation	1
2	Purpose	4
3	Services	5
4	Acceptance	6
5	Personnel	6
6	Obligations of the Client	7
7	Charges and Payment	7
8	Warranties	7
9	Liability	8
10	Force Majeure	9
11	Term	9
12	Termination	9
13	Intellectual Property Rights	10
14	Cooperation	12
15	Confidentiality	13
16	Non-Solicitation	14
17	Miscellaneous	15
	Schedule 1 - Charges	18
	Schedule 2 - Change Request Procedure	

Master Services Agreement

Between:

- (1) **FuturMaster SAS**, a French simplified joint stock company (*société par actions simplifiée*), having its registered office located in **BOULOGNE-BILLANCOURT (92100)** (France), at **30, cours de l'Île Seguin**, registered with the RCS of Nanterre under number **B 393 515 671**, duly represented by **Yacine Zeroual as General Manager EMEA**, ("FuturMaster" or the "Supplier");

AND

- (2) **pladis France**, a French simplified joint stock company (*société par actions simplifiée*), having its registered office located in **Vertou (44120)** (France), at **27 Route du Mortier Vannerie**, registered with the RCS of Nantes under number **B 856 801 519**, duly represented by **Tim Brett as President**,
- (3) **pladis Belgium SRL**, having its registered office located at **1000 Bruxelles, Avenue du Port 86C boîte 204** (Belgium), registered at the RPM Bruxelles Division Francophone under number **BE0695.939.267**, duly represented by **Baris Oner as Director**,
- (4) **Koninklijke Verkade NV**, having its registered office located at **Westzijde 103 PO Box 5 1500 EA Zaandam**, (Netherlands), registered at the KVK under number **35000477**, duly represented by **Dennis Teeken as Director**,

(2), (3), (4) jointly referred to as "pladis" or "the Client".

The Client and FuturMaster SAS shall be referred to individually as a "Party" and collectively as the "Parties."

Background

- (A) FuturMaster markets certain software products and related professional services in several countries.
- (B) FuturMaster and the Client have executed a software license and services agreement (the "**Standard SaaS Services Agreement**") in order to define the legal, financial and operational conditions pursuant to which FuturMaster shall grant, to the Client, the right to use FuturMaster Software and shall provide related maintenance and associated services.
- (C) The Client wishes to contract with FuturMaster to obtain certain services for the installation of FuturMaster Software as described in the Software License Agreement and FuturMaster has accepted to provide these services and other professional services on the terms and subject to the conditions set forth in this Master Services Agreement.

It is agreed as follows:

1 Interpretation

- 1.1 In addition to the definitions set out in the Software License Agreement or in any Purchase Order and/or Statement of Work, capitalized terms used in this Agreement shall have

the meanings set out below. To the extent this Agreement and a Purchase Order and/or Statement of Work include different definitions of the same capitalized term, the definition included below in this document shall prevail.

Acceptance means the acceptance of the Services and/or Deliverables in accordance with the Acceptance procedure and User Acceptance Test described in the applicable Statement of Work;

User Acceptance Test has the meaning stated in the applicable Statement of Work;

Affiliate means any company that, as of Effective Date or subsequent hereto, (i) controls one of the Parties, or (ii) is controlled by one of the Parties, or (iii) is controlled by any company under (i) above. "Control" shall mean to own, either directly or indirectly, more than fifty percent (50 %) of the shares of such company or the majority of voting rights therein. Any company that does not meet the conditions set forth in this definition shall not be deemed to be an Affiliate of one of the Parties;

Agreement means this Master Services Agreement, each Schedule hereto, any Purchase Order, Statement of Work and any other document duly executed by the Parties pursuant to or under the provisions hereunder and any amendments duly executed in accordance with Clause 18.3 to any of the foregoing;

Business Day means any business working day, except a Saturday, Sunday or public holiday;

Change Request means a request by FuturMaster or the Client for a change to the Purchase Order and/or Statement of Work;

Change Request Procedure means the procedure specified in Schedule 2 on which a Change Request may be made by the Client;

Charges means the charges specified in Schedule 1 or in the applicable Purchase Order and/or Statement of Work;

Confidential Information means the contents of this Agreement, any information regarding the existence and negotiation of this Agreement between the Parties as well as any information related to either of the Parties that are not known generally to the public, whether it pertains to FuturMaster Software, the Services and/or the Deliverables and their components, a technique, trade secret or other (including, but not limited to, savoir-faire as well as information related to technologies, software, formulas, data, algorithms, specifications or prototypes, clients, business plans, promotional activities, marketing, financing and other commercial information).

Default means any breach of the obligations of either Party (including but not limited to fundamental breach or breach of a fundamental term) or any default, act, omission, negligence or statement of either Party, its employees, agents or sub-contractors in connection with or in relation to the subject matter of this Agreement and in respect of which such Party is liable to the other.

Deliverables means any deliverables provided to the Client by FuturMaster, including the end result of any Service (including but not limited to any tool, documents, reports, training materials, analyses, software, program summaries, program listings, program logic, flow charts, screen designs, file formats, drawings, manuals, installation guides, recommendations, and advice), prepared or issued by FuturMaster and that maybe described in each Purchase Order and/or Statement of Work, and that shall be performed by FuturMaster on behalf of or for the Client;

Documentation means the Specifications of the Deliverables which are to be developed by FuturMaster in accordance with this Agreement;

Effective Date means the date on which this Agreement is executed;

Good Industry Practice means in relation to the Services delivered by FuturMaster, the exercise of that degree of care, diligence and skill which would reasonably and ordinarily be expected from an adequately skilled, professional and experienced services provider engaged in the same type of undertaking under the same or similar circumstances;

Intellectual Property Rights means all intellectual property rights of any kind existing anywhere in the world, whether or not registered and all applications, renewals, and extensions of the same and whenever arising, registered, or applied to be registered including, without limitation, copyright, database rights, design rights, patents, trademarks, service marks, trade names, and other rights in goodwill, rights in know-how, trade secrets, and other confidential information;

Milestone means as regards FuturMaster obligations hereunder to deliver or perform any part of the Services, the relevant date or stage which may be agreed and set out in the applicable Statement of Work;

Purchase Order has the meaning set out in Clauses 3.2 and 3.3;

Services means any professional services purchased in connection with FuturMaster Software procured hereunder and described in the applicable Purchase Order and/or Statement of Work;

Standard SaaS Services Agreement means the software license and services agreement entered into by FuturMaster and the Client on the Effective Date

Specifications means the specifications of the Services and/or of the Deliverables to be supplied by FuturMaster and defined in the applicable Statement of Work or Purchase Order.

Statement of Work means a document executed by the Parties pursuant to or under this Agreement (including any schedule or other similar document attached thereto) that describes in detail any Services to be provided by FuturMaster to the Client and/or the Deliverables to be delivered and any other terms or conditions relating to the provision of such Services or Deliverables as agreed by the Parties.

- 1.2 Clause, Schedule and paragraph headings shall not affect the interpretation of this Agreement.
- 1.3 The Schedule form part of this Agreement and shall have effect as if set out in full in the body of this Agreement. Any reference to this **Agreement** includes the Schedule.
- 1.4 References to Clauses and Schedule are to the Clauses and Schedule of this Agreement and references to paragraphs are to paragraphs of the Schedule.
- 1.5 A **person** includes a natural person, corporate or unincorporated body (whether or not having separate legal personality) and that person's personal representatives, successors and permitted assigns.
- 1.6 A reference to a **company** shall include any company, corporation or other body corporate, wherever and however incorporated or established.
- 1.7 Unless the context otherwise requires, words in the singular shall include the plural and in the plural shall include the singular.

- 1.8 Unless the context otherwise requires, a reference to one gender shall include a reference to the other genders.
- 1.9 A reference to any **party** shall include that party's personal representatives, successors and permitted assigns.
- 1.10 A reference to a statute or statutory provision is a reference to it as amended, extended or re-enacted from time to time.

- 1.11 A reference to a statute or statutory provision shall include all subordinate legislation made from time to time under that statute or statutory provision.
- 1.12 A reference to **writing** or **written** includes e-mail but not fax.
- 1.13 Any words following the terms **including, include, in particular, for example** or any similar expression shall be construed as illustrative and shall not limit the sense of the words, description, definition, phrase or term preceding those terms.

2 Purpose

- 2.1 This Agreement is intended to define the terms and conditions pursuant to which FuturMaster shall perform for the Client the Services or deliver the Deliverables to the Client and/or the Client's Affiliate.
- 2.2 This Agreement shall not be deemed to constitute a service order in itself nor shall it be deemed to obligate the Client to order any Services or Deliverables from FuturMaster.
- 2.3 This Agreement shall apply to each Purchase Order and Statement of Work executed during the term hereof, in accordance with the terms and conditions contained herein, in particular, Clause 3 below.

3 Services

- 3.1 In the event the Client wishes to engage FuturMaster to perform Services, FuturMaster shall submit to the Client a Statement of Work, setting forth certain particulars, including but not limited to, the particular work to be done and Deliverables to be provided to the Client, and any special terms and conditions relating to the provision of such Services or Deliverables as agreed by the Parties such as, if applicable, the period during or within which such Services and/or Deliverables shall be performed and delivered, and the specific arrangement relating to the fees and expenses payable in respect of such Services and/or Deliverables.
- 3.2 If the Client accepts the Statement of Work submitted by FuturMaster, the Client shall send to FuturMaster a signed version of the Statement of Work. If necessary and possible, the Client shall also issue and send to FuturMaster a Purchase Order by either: (i) physical delivery acknowledged by receipt or delivery notice; (ii) or e-mail with return receipt. A Purchase Order will only contain the following specific terms and conditions : (a) the identification of the Services/Deliverables being procured, (b) price/fees/charges, (c) quantity, and (d) delivery location, and in any event, this Agreement and any Statement of Work issued in connection with such Services and/or Deliverables will control over any inconsistent terms in a Purchase Order in accordance with the order of precedence set out in Clause 3.3.
- 3.3 In the event of a conflict between the terms and conditions of this Agreement and the terms on or attached to any Purchase Order or Statement of Work, the Parties agree that the following order of precedence shall apply: (i) the applicable Statement of Work , (ii) the general terms and conditions of this Agreement (except in relation to price/fees/charges), (iii) the Purchase Order.
- 3.4 By exception to the above provisions for Services and/or Deliverables corresponding to an amount below fifty thousand (20,000) Euros, the Parties may agree that no Statement of Work will be submitted by FuturMaster and only a Purchase Order will be issued and sent by the Client to FuturMaster.

- 3.5 All Services and/or Deliverables provided by FuturMaster will be subject to the terms and conditions of this Agreement (regardless of whether a Statement of Work is actually signed, or a Purchase Order issued).
- 3.6 Besides the Purchase Order set out in Clauses 3.2 and 3.3, the Statement of Work (if such Statement of Work is issued by FuturMaster) shall be the only other document that may be considered a binding obligation under this Agreement and must specifically make reference hereto.
- 3.7 Each of the Parties may request by written to make changes, additions, deletions, or modifications to any Statement of Work or Purchase Order in accordance with the Change Request Procedure set out in Schedule 2. If any such change affects the amount due or the time of performance thereunder, the Parties shall negotiate in good faith a mutually acceptable appropriate adjustment to the applicable fees and/or performance due dates in accordance with the Change Request Procedure set out in Schedule 2.
- 3.8 FuturMaster shall use reasonable endeavors to achieve completion of each phase of the Services by the relevant performance date or Milestone (if defined in the applicable Statement of Work or Purchase Order) but any such dates or Milestone shall be estimates only and time for performance by FuturMaster shall not be of the essence of this Agreement.

4 Acceptance

- 4.1 Acceptance of the Services and Deliverables shall be deemed to take place upon completion of the Services and where the Deliverables have passed the User Acceptance Test.
- 4.2 Notwithstanding Clause 4.1, where the Client or the Client's Affiliates uses the Deliverables before Acceptance, except for Acceptance Test purposes, then the Deliverables shall be deemed to have been accepted on the date of first use.
- 4.3 The Client shall notify FuturMaster of any Services or Deliverables that fail to conform with the terms of this Agreement, or the Statement of Work and notify FuturMaster of the need for correction of such Services or Deliverables immediately and at the latest within 15 days after completing the User Acceptance Test.

5 Personnel

- 5.1 FuturMaster shall provide all personnel required to perform the Services in accordance with a Statement of Work and/or Purchase Order, which personnel may in some instances be employees of FuturMaster or FuturMaster Affiliates and in other instances may be independent contractors hired by FuturMaster or FuturMaster Affiliates for the purpose of providing Services pursuant to this Agreement. In either such event, FuturMaster and FuturMaster Affiliate shall be directly responsible and liable to the Client for all acts of such persons including, but not limited to, the completion of the Services to be performed.
- 5.2 All FuturMaster's personnel or contractors shall have the necessary skills, experience, and training in order to meet FuturMaster's obligations under this Agreement.

5.3 FuturMaster shall be exclusively liable for all the administrative, tax, accounting, and labor-related management of its personnel assigned to perform the Services for the Client and deliver the Deliverables. FuturMaster expressly retains all managerial, organizational, and supervisory control over the personnel it assigns to perform the Services or deliver the Deliverables.

5.4 The Client will furnish FuturMaster's personnel with access at the Client facilities to the systems, equipment, software, premises and office accommodation to the extent necessary for the supply of the Services by FuturMaster.

6 **Obligations of the Client**

The Client hereby undertakes:

- to maintain accurate and up-to-date records of the number and location of all copies of the Deliverables and the Documentation;
- to supervise and control the use of the Deliverables and Documentation in accordance with the terms of this Agreement;
- to reproduce and include the copyright notice of FuturMaster on all and any copies, whether in whole or in part, and in any form, including partial copies or modifications; and
- not to copy, translate, adapt, vary, modify, disassemble, decompile or reverse engineer the Deliverables except to the extent and only to the extent to which any of those acts are expressly permitted by the applicable laws.

7 **Charges and Payment**

7.1 The Charges shall be calculated on a time and materials basis at the rates set out in Schedule 1 or as amended by FuturMaster from time to time or at the specific price / fee agreed in the applicable Statement of Work or Purchase Order.

7.2 The Client shall pay the Charges to FuturMaster within 45 days end of the month of issuance of FuturMaster invoice.

7.3 If Client fails to make any payment due to FuturMaster under this Agreement by the due date for payment, then, without prejudice to any other remedies available to FuturMaster under this Agreement, FuturMaster shall automatically apply late payment interest in an amount equal to the European Central Bank refinance rate plus 7 percentage points to any invoiced amounts that are overdue, it being understood that this rate may not be less than three times the French legal late interest rate. Late payment interests shall accrue on a daily basis on such due amounts and at such rate commencing on the due date and continuing until fully paid, whether before or after judgment.

In the event of non-payment of all the amounts due under this Agreement, and provided that FuturMaster has given the Client at least 30 days prior notice that its account is overdue then without prejudice to any other rights and remedies of FuturMaster, FuturMaster may at its discretion, without any indemnity or liability to the Client, suspend the supply of any Services and/or terminate this Agreement.

7.4 The Charges and sums payable under this Agreement are exclusive of any applicable tax and the Client shall pay all applicable taxes on all those sums at the rate and in the manner prescribed by law from time to time.

8 Warranties

8.1 FuturMaster warrants and represents that:

- (a) the Services shall be performed in a timely and professional manner by qualified personnel;
- (b) subject always to Clause 8.2, Clause 8.3 and Clause 8.4 below, the Services and the Deliverables shall conform to the Specifications in all material respects as well as to the standards and Good Industry Practice for similar Services and Deliverables; and
- (c) the Deliverables will function in the manner set forth in the Specifications for a term one year and six months (1.5 years) from the date of User Acceptance Test (the Warranty Period).

8.2 In the event that the Client discovers that the Services and/or Deliverables do not comply with Clause 8.1 of this Agreement, and such non-compliance substantially affects the use of the Deliverables in accordance with this Agreement, the Client shall promptly notify FuturMaster following Acceptance of the Services and/or Deliverables concerned.

FuturMaster shall at its sole option either refund any sum paid by the Client pursuant to Clause 8.1 for the portion of the Services and/or Deliverables which are not compliant or use all reasonable endeavors to correct or replace such non-compliant Services or Deliverables, provided that the Client (i) has notified FuturMaster of the non-compliance/defect, during the Warranty Period, (ii) has not performed any modifications, variation, or addition to the Deliverables through the use of any company other than FuturMaster or the non-compliance/defect is caused by the incorrect use, abuse or corruption of the Deliverables or by use of the Deliverables with hardware other than the hardware or other equipment specified in the Specifications (if any). In order for FuturMaster to be able to make the necessary corrections, the Client shall provide it with a description and all information necessary to identify such non-compliance/defect.

8.3 Except as expressly stated in this Agreement, to the extent permitted by law, no any other warranties are provided by FuturMaster.

9 Liability

9.1 FuturMaster warrants that it shall use reasonable skill and care in performing its obligations under this Agreement. FuturMaster shall also perform its obligations in a professional manner in accordance with accepted industry practices and standards.

9.2 FuturMaster shall only be held liable for direct and foreseeable losses or damages suffered by the Client and/or any of its Affiliates as a result of a fault caused by FuturMaster during the performance of this Agreement. For the avoidance of doubt, the following losses shall be considered "direct" for the purpose of this Agreement: loss of orders, customer penalties, loss of sales or production. Damages caused after a modification of FuturMaster's configuration output by a pladis employee shall not be considered as a fault caused by FuturMaster. Additionally, FuturMaster shall not in any circumstances have any liability for any losses or damages which may be suffered by the Client (or any person claiming under or through the Client, including its Affiliates), whether the same are suffered directly or indirectly or are immediate or consequential, and whether the same arise in contract, tort (including negligence) or otherwise howsoever, which fall within any of the following categories: any indirect or consequential arising under or in connection with this Agreement; OR any financial or economic loss, loss of profit, loss of use, loss of goodwill, loss of reputation, anticipated savings, loss or corruption of data and files; the cost of replacement products, software, services or technologies, or any action taken against the Client and/or any of its Affiliates by any third party.

The Client undertakes to take all measures and actions to mitigate its losses and damages. The Client shall be responsible for saving and backing-up all Client data in order prevent the loss or damage thereto and shall verify that back-ups operations take place at regular intervals.

- 9.3 Subject always to Clause 9.5, the total aggregate liability under this Agreement of either Party for each event or Default or series of related events of Default shall be limited to damages which shall not exceed the total Charges payable under this Agreement provided always that in any period of twelve (12) consecutive months the maximum liability of each Party to the other for Defaults governed by this Clause 9.3 shall not exceed one one million five hundred thousand euros (€ 1 500 000).

Nothing in this Agreement shall limit or exclude a Party's liability for (i) death or personal injury arising from its negligence or that of its employees, agents or subcontractors or (ii) fraud, theft or willful misconduct.

Subject always to Clause 9.5, the liability of FuturMaster for any fault under or in connection with this Agreement, whether arising from negligence, breach of contract or all other torts shall be as set out in this Clause. To the extent permitted by law, FuturMaster shall have no liability to the Client under this Agreement (including any Purchase Order and/or any Statement of Work) other than as expressly set out in this Agreement. This Clause sets out the entire financial liability of FuturMaster (including any liability for the acts or omissions of its Personnel, agents and sub-contractors), except the financial liability resulting from applicable mandatory legal provisions.

The Parties expressly agree that should any limitation or provision contained in Clause 9.1 and 9.2 be held to be invalid under any applicable law, it shall to that extent be deemed omitted, but if any Party thereby becomes liable for loss or damage which would otherwise have been limited; such liability shall be subject to the other limitations and provisions set out herein.

- 9.4 Accordingly, the Client expressly agrees that the exclusion and limitation of liability clauses set out in this Agreement:

- (a) reflect the commercial terms agreed between the parties;
- (b) shall extend to benefit those members of the group companies of the Supplier which provide any Services from time to time; and
- (c) are reasonable and are accepted by it after careful consideration.

- 9.5 To the extent permitted by law, all legal proceedings that are brought against the Supplier by the Client under or in connection with this Agreement shall be commenced within twelve (12) months of the Client becoming aware of the matters to which the legal claim in question relates, but nothing in this clause shall have the effect of extending the limitation period during which any legal proceedings may be brought.

10 **Force Majeure**

The obligations attached to one or the other Party under this Agreement shall be suspended and without formality, and its liability waived, in the case of one of the force majeure cases impeding normal performance of its obligations. It is specified that force majeure cases are all compelling events, as well as, without being exhaustive, the following cases: fire, flood, riots, public disorder, dramatic weather events, injunction or restriction by a government entity, war as well as failure and/or blockage of telecommunications or information or electricity networks.

The Party acknowledging the event shall, without delay, notify the other Party about

its impossibility to perform its service and provide justification thereof. The suspension of obligations shall not in any case be a cause for liability for failure to perform an obligation, nor be cause for payment for damages or late penalties.

However, once the cause for suspension of reciprocal obligations has disappeared, the Parties shall make their best endeavors in order to continue normal performance of their contractual obligations as quickly as possible. As such, the impeded Party shall notify the other in regards to restarting performance of its obligation via certified letter with return receipt.

It is expressly agreed that the Parties may terminate this Agreement, if the event, defined as a hypothesis for suspending obligations, continues for a period of more than one (1) month. However, this termination shall be possible only eight (8) days after receiving notice by certified letter with return receipt. The Agreement shall therefore be terminated without damages for either party.

11 Term

This Agreement takes effect on the Effective Date for a term of Five (5) years (the "Initial Period"). After the Initial Period, this Agreement will be renewed after validation from both parties for consecutive periods of one (1) year ("Renewal Period").

12 Termination

12.1 Each Party may, in the following cases, rightfully terminate the Agreement:

- in case of a material breach by the other Party of any of its essential obligations under the Agreement and within thirty (30) days from being provided a notice thereof, which goes without response, when it is likely that the breach can be cured, or immediately in the contrary case;
- in case of bankruptcy, a liquidation ordered by a court against the other Party or analogous or similar procedure applicable to the other Party at a later date or in any other country.

12.2 In each of these cases, upon termination, each Party shall return to the other Party all elements in its possession belonging to the other and shall take any necessary measures in order to destroy any copy, except for a single archive copy necessary for responding to its legal tax and accounting obligations, such copy being used exclusive for this purpose.

12.3 Upon termination of the use right, or on the effective termination date, the Client agrees to stop using the Deliverables and affirm in writing this discontinuation to FuturMaster; the Client also agrees to erase/destroy/delete any copy of the Deliverables and/or Documentation at the contractual end date or at the effective termination date or return it to FuturMaster in their entirety. Any use, even partial, of the Deliverables and/or Documentation after the contractual end date or at the effective termination date will constitute an infringement of FuturMaster's rights, likely to cause civil and/or criminal legal action.

12.4 Forthwith upon completion of the activities set out in Clause 12.2 and Clause 12.3 above, the Client shall certify in writing to FuturMaster that it has fully complied with the requirements of Clause 12.2 and Clause 12.3.

12.5 The termination of this Agreement shall not prejudice or affect any right of action or remedy which shall have accrued or shall thereafter accrue to either Party.

12.6 The provisions of Clause 1, 4, 7, 8, 9, 12, 13, 16, 17, 18.1, and 18.7 shall survive the termination or expiry of this Agreement.

13 Intellectual Property Rights

- 13.1 The Agreement shall not include the transfer of any intellectual property rights to the Client. The Deliverables and any product resulting from the Services provided by FuturMaster in the framework of the performance of the Agreement shall remain the property of FuturMaster or any third party publisher, as the case may be. As a consequence, the Client accepts and acknowledges that FuturMaster is the owner of the rights in any copy, translation, modification, adaptation or application of the Deliverables that may be created by FuturMaster or the Client, including any improvements of developments concerning FuturMaster Software or Deliverables.
- 13.2 If a Client representative, employee or consultant is assumed to be the owner of the rights set forth above, as the author, the Client shall take all necessary measures to ensure that such person transfer all such rights to FuturMaster or third party publishers. If, due to applicable law or regulation, such rights may not be transferred, the Client shall take all necessary measures to ensure that such person waives its rights therein or if such waiver is not legal, that such person grants exclusively and irrevocably, such rights to FuturMaster or third party publishers, for free and for an unlimited term on a worldwide basis in order to use, market and modify the elements without having to identify the author or obtain its prior consent. Upon FuturMaster's request, the Client shall take all necessary measures to execute a written agreement with the author memorializing FuturMaster's or the third party publisher's rights provided for under this Clause.
- 13.3 The Client undertakes not to directly or indirectly, through any intermediary, violate the intellectual property rights of FuturMaster or relevant third party publisher. With regards to its employees and/or any third party that legitimately had access to FuturMaster Deliverables subsequent to FuturMaster giving its authorization, the Client shall take all measures necessary to ensure that FuturMaster's or the relevant third party publisher's intellectual property rights are respected. Moreover, the Client shall not delete or modify the ownership notices on the Documentation and undertakes to reproduce and place such notices on any complete or partial copy of the Deliverables or Documentation that it produces.

FuturMaster shall hold the Client harmless for against any legal action based on the Client's use of the Deliverables pursuant to the Agreement over the Territory which violates any third party intellectual property rights.

This warranty is hereby granted by FuturMaster provided that:

- FuturMaster be immediately notified of any claims or legal action brought by any third party claiming infringement of its rights by the Deliverables (a "**Third Party**");
- FuturMaster be able to mount its defense of the Client at its sole discretion, against any threatened action, complaint or claim; and
- The Client provide assistance and allow FuturMaster to take sole control of any negotiations with the Third Party in order to execute a settlement.

The Client shall not respond alone to any claim, complaint or legal action and/or defend itself alone in any judicial action or litigation brought against it by a Third Party or discuss or execute any agreement or settlement with a Third Party and undertakes, if it is named as a defendant, to immediately notify FuturMaster and collaborate with FuturMaster in accordance with this Clause.

Upon receiving notification of any claim, complaint or legal action brought by any Third Party, FuturMaster may, subject to the terms and conditions set forth above, **at its sole discretion and expense:**

- modify the Service so that it no longer infringes while maintaining similar features, upon client's validation on the newly developed feature;
- obtain the right to continue to use the alleged infringing Service on behalf of the Client;
- provide the Client with software with substantially similar features and performance parameters; or
- request that the Client return the infringing Service, the Documentation and anything associated therewith. The Client shall then be entitled to a refund of all costs directly associated to the use of the software and Service Fees paid by the Client to FuturMaster for the use of the Service from the Effective Date to the date of return.

In the event of a settlement for which an amount is agreed upon by FuturMaster and the Third Party, FuturMaster shall pay the entirety of the amounts to be paid by the Client to the Third Party.

This warranty against dispossession granted by FuturMaster shall not apply to a Deliverable:

- That was modified, after it has been delivered by FuturMaster and by a third party service provider;
- That is used in conjunction with third party software, materials or operating systems other than those as set out at the Software License Agreement, if the infringement pertains to such combined use;
- That are still being used by the Client in spite of a settlement agreement having been executed or after a definitive legal judgment has been rendered or if the Client fails to implement the modifications suggested by FuturMaster which would lead such to no longer being considered as infringing;
- That are used by the Client and the infringement arises out of a failure of the Client to strictly comply with the provisions set forth in the Agreement.

In the event that any infringement is imputable to the Client and that a judgment has been rendered against FuturMaster with respect thereto, the Client shall indemnify FuturMaster for the entirety of the financial consequences incurred by FuturMaster in relation to such and, more specifically, the Client shall indemnify and hold FuturMaster harmless for any damages, as well as reasonable expenses, court costs, associated fees, and legal fees.

14 **Cooperation**

Each of the Parties shall cooperate with one another in an active, continuous manner with regards to the performance of their obligations under the Agreement. FuturMaster's delivery of the Services and Deliverables depends on the Client's performance of its contractual obligations. The Client must clearly express its needs and constraints in order to properly install the Deliverables in accordance with the Agreement and this obligation shall be considered a material aspect hereof.

15 Contract Management - Governance

Management of this Agreement and governance of the Services will be carried out by the officers and committees set out below, whose roles and responsibilities are described below and in the applicable Statement of Work.

15.1 Contract/Project Officers

- (a) The Parties agree to appoint and to keep appointed, a Contract Manager and to procure that they, together with any other representative as required, will meet regularly, either by telephone or in person, not less than once in every three months, unless otherwise agreed between the Parties to:
 - (i) review and set in hand any action and decision as necessary with regard to operational or financial issues and other matters relating to the provision of the Services under this Agreement, and
 - (ii) work together to monitor and maintain the relationship and promptly set in hand actions needed to resolve, as required from time to time, any issues that arise in relation to the good management of the Supplier's obligations under this Agreement.

The Contract Managers of each of the Parties are identified in the Statement of Work. Each of the Parties will be entitled to modify their Contract Manager on a discretionary basis. Any modification by either party of its Contract Manager shall be notified promptly to the other Party.

- (b) The Project Manager representing the Supplier and the Client will be responsible for the follow-up of the provision of the Services and the monitoring of the delivery of the Services on a day-to-day basis. Project Managers will report to their respective Contract Manager. They may meet weekly to discuss day-to-day operations and such other matters as appropriate and will attend the meetings of the Project Committee.

The Project Managers of each of the Parties are identified in the Statement of Work. Each of the Parties will be entitled to modify their Project Manager on a discretionary basis. Any modification by either party of its Project Manager shall be notified promptly to the other Party.

15.2 Contract/Project Committees

- (a) The Project Committee will meet not less than once every four weeks to monitor the level of delivery of the Services. The Project Committee will discuss the performance of the Services during the previous weeks, planned or anticipated activities, and changes that might adversely affect performance of the Services, including a Change Request. The Project Committee may review and make proposals in order to improve the delivery of the Services. The Project Committee shall be composed of the Project Managers, and representatives of the Supplier and the Client.
- (b) The Steering Committee will meet not less than once in every three months to review the Performance Report for the last quarter, review progress on the resolution of issues, take decisions in relation to all operational issues. The Steering Committee shall be composed of the Contract Managers, Project Managers, and representatives of the Supplier and the Client, and such other persons as may be designated by the Supplier or the Client.

The meetings of the Project Committee and the Steering Committee will be convened and take place in accordance with the rules defined in the applicable Statement of Work. The minutes of all meetings will have to be prepared and approved in accordance with the project management rules defined in the applicable Statement of Work.

15.3 Compulsory and regular information and reporting

Each Party undertakes that there will be appropriate liaison between staff engaged in the performance of the Parties' obligations under this Agreement and that their respective Service Managers are always mutually informed.

The Parties shall establish a Quarterly Performance Report, which shall be delivered to the Steering Committee fifteen days before the end of each quarter. Such Quarterly Performance Report shall be prepared in accordance with the format that will be agreed by the Supplier and the Client.

16 **Confidentiality**

The Parties (i) hereby commit to take all measures necessary in order to ensure the strictest confidentiality of all the Confidential Information and (ii) agree that any Confidential Information received from the other Party shall only be used strictly as necessary for the performance of the Agreement. This obligation shall not be applicable insofar as the Confidential Information:

- are generally available to the public or become available to the public by any means other than the violation of this Article;
- are obtained by third parties not under an obligation of confidentiality with regards to the information;
- are or have been developed independently by the receiving Party or were known by such before have received such information.

Each Party shall have the right to disclose the Confidential Information pursuant to a court judgment or as required by a public entity or governmental authority. In such case the receiving Party shall immediately notify the disclosing Party with respect to such Confidential Information and shall, insofar as such is possible, limit the scope of the disclosure or to stop the information from being disclosed to the public. Any delay or failure to act by the disclosing Party shall be deemed as a waiver of this right or as a waiver of the right to make any future claim for breach of contract in connection to the Agreement.

Each Party must, upon first request or, at the latest, upon the termination of the Agreement, return all of the Confidential Information pertaining to the other Party to it as well as all copies, whether complete or partial, that are in the Receiving Party's possession.

Subject to the dispositions set forth above, and in consideration of the commercial relationship between the Parties, FuturMaster is expressly authorized by the Client to use the relationship established under the Agreement as a reference for its other clients and prospects and to use Client marks (trademarks, logos) in this regard.

17 **Non Solicitation**

Each of the Parties agrees to not approach nor solicit any member of the other Party's personnel with whom it has been in contact with, with the intention to employ or have them work for it, whether directly or indirectly, without prior written authorization, even if the initial solicitation is made by the concerned employee.

This prohibition applies for the duration of this Agreement and for the period of two (2) years following its termination, for whatever reason whatsoever. In the case of a violation of this prohibition, the breaching Party shall be required to immediately remunerate the other Party, as liquidated damages, a fixed indemnity equal to 12 months of the last monthly gross salary of the solicited or hired person plus all the costs associated with recruiting a replacement.

18 Miscellaneous

18.1 Assignment

The Client may not assign its rights or obligations arising under the Agreement without prior written agreement from FuturMaster. Any unauthorized assignment of this Agreement shall be considered null and void.

FuturMaster may assign freely this Agreement to one of its Affiliates or to a third party.

The Client acknowledges and accepts that the Associated Services may be provided by an Affiliate or a FuturMaster partner entity, it being understood that FuturMaster shall remain responsible for performing its obligations according to the conditions set forth herein.

18.2 Waiver

The fact that one of the Parties does not enforce the application of any one of the Agreement dispositions or accepts its non-performance, whether permanently or temporarily, shall not be interpreted nor constitute a waiver of this Party's rights to enforce application of this or any other disposition of the Agreement.

18.3 Modifications - Entire Agreement

The Agreement may only be modified by amendment, duly validated and signed by an authorized person representing each Party.

This Agreement represents the entire agreement and obligations existing between the Parties regarding the provision of Services and/or Deliverables to the Client by FuturMaster. It replaces and voids all other communications, documents and/or oral or written agreements exchanged prior to the Parties executing this Agreement as well as all the Client's general product or services purchase conditions.

18.4 Severability

The voiding or inapplicability one of the Agreement stipulations shall not render the other stipulations void and which shall retain their enforceability and scope. As such, if one of the Agreement clauses is or becomes inapplicable or void, it shall be considered as not having existed and the Parties agree to use their best endeavors to replace any inapplicable or void clause by a new clause which would allow for the maintaining of the technical and the economic balance of the Agreement.

18.5 Notices

Any notification or communication which must be or can be sent by one of the Parties to the other Party in reference to this Agreement shall be hand delivered or sent by certified letter to the address of this Party as specified at the beginning of this Agreement or to any other address which may be provided in writing by this Party.

18.6 Relationship

FuturMaster and the Client acknowledge and agree that this Agreement shall not constitute, create or give effect to a joint venture, pooling arrangement, principal/agency relationship, partnership or formal business organization of any kind and neither FuturMaster nor the Client shall have the right to bind the other without the other's express prior written consent.

18.7 Law and Jurisdiction

The Agreement shall be governed and construed by French law.

Any dispute arising out of the interpretation or performance of this Agreement shall be submitted to the directors or any other representatives of each of the Parties having the capacity and authority to negotiate and execute settlements and, if possible, to persons with a higher hierarchical level than those persons implicated in the daily management of the Agreement. Each Party agrees to meet quickly and no later than ten (10) days after receiving a certified letter with return receipt from the other Party.

The provisions of this article do not prohibit the Parties from submitting any dispute to the Courts hereunder, at any time, with the intention to preserve their rights linked to the subject of the dispute.

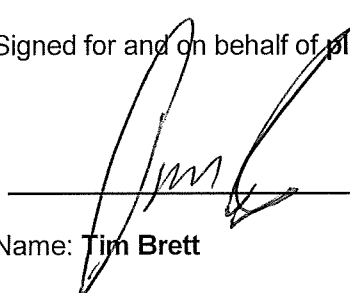
IN WITNESS of which this Agreement has been duly executed by the Parties.

Signed for and on behalf of **FuturMaster**

Signé par :
Yacine ZEROUAL
54CD30E327CC4A9

Name: **Yacine Zeroual**
Title: **General Manager, EMEA**

Signed for and on behalf of **pladis France**


Name: **Tim Brett**
Title: **President**

Signed for and on behalf of **pladis Belgium SRL**



Name: **Baris Oner**

Title: **Director**

Signed for and on behalf of **Koninklijke Verkade NV**



D. Teeken (Jun 4, 2025 18:04 GMT+2)

Name: **Dennis Teeken**

Title: **Director**

Schedule 1 - Charges Time and Materials

FuturMaster agrees to perform the Services set forth in this Agreement, , and the Statement of Work as set forth hereunder at the time, price, and form set forth in each Statement of Work.

The Charges shall be paid to FuturMaster in accordance with Clause 5 at the rates set out below or as amended by FuturMaster from time to time.

Schedule 2 – Change Request Procedure

Any requests by the Client to modify any provisions of the applicable Statement of Work or that are beyond the scope of such applicable Statement of Work or any requests by the Supplier for major changes to the applicable Statement of Work shall be documented in a separate, written, fully executed Change Request Form before the Supplier will begin additional Deliverables and/or Services or the changes concerned. Each Change Request Form shall be in the format as set out below or in the Statement of Work provided that the Parties may agree otherwise.

The Change Request Form shall be sent to the Project Manager of the other Party. The Parties shall without delay discuss the Change Request Form and the consequences of the changes requested on the delivery of the Services or applicable fees (if any).

Any change to the Deliverables and/or Services set forth in the applicable Statement of Work will be provided by the Supplier on the basis set forth in the Change Request Form and will be supplied on a time and materials basis at the Supplier's then current standard rates unless otherwise set forth in the Change Request Form or on the basis of the specific financial conditions as set out in the signed Change Request Form.

The Client shall, within ten (10) Business Days of receipt of the Supplier's quotation or such other time as may be agreed by the Parties, advise the Supplier in writing of its decision either:

- i. to accept the quotation in which case the Change Request Form shall be signed to reflect the Change; or
- ii. to reject the quotation in which case the applicable Statement of Work shall continue in force unchanged.

Neither Party shall be obliged to consider or implement a request for a Change except in accordance with the procedure set out in this Section. Until such time (if at all) as a Change Request is accepted, the Supplier shall, unless otherwise agreed, continue to provide the Services in accordance with the applicable Statement of Work, notwithstanding the Change Request. For the avoidance of doubt, in the event a Change Request Form is signed, no other provisions of the Statement of Work will be amended except the ones expressly amended by such Change Request Form.

CHANGE REQUEST FORM

Master Services Agreement Dated [REDACTED]

SOW No/Ref: [REDACTED]

Change Request No: [REDACTED]

Project Name/Ref: [REDACTED]

This **Change Request** is issued in accordance with and is subject to the Master Services Agreement (the "Agreement") and Statement of Work referenced above, entered into between FuturMaster (the "Supplier") and [REDACTED] (the "Client") executed on [REDACTED] and sets out a variation of the **SOW** referred to above.

Change Request Title	[CHANGE REQUEST TITLE]
Initiator	[INITIATOR]
Date of request	[DATE OF REQUEST]
Expected date	
Expected version	

Reason for change	[REASON FOR THE CHANGE]
Details of change	[DETAILS OF THE REASON FOR CHANGE] / [INCLUDE ANY CHANGE TO SPECIFICATIONS] [See Appendix 1 attached]

Quotation (if applicable)	[AMENDMENTS TO FEES / COST OF CHANGE] [See Appendix 1 attached]
Payment Schedule (if applicable)	[PAYMENT SCHEDULE] [See Appendix 1 attached]
Implementation Plan	[TIMETABLE FOR THE IMPLEMENTATION] [INCLUDE ANY PROPOSALS FOR ACCEPTANCE OF THE CHANGE] [See Appendix 1 attached]

Impact of the Change on other aspects of the Statement of Work	[Should include, but is not limited to:] [THE TERM OF THE CONTRACT] / [THE PAYMENT PROFILE] / [THE DOCUMENTATION TO BE PROVIDED] [OTHER CONTRACTUAL ISSUES]
Expiry date of the validity of the Change Request	[DAY/MONTH/YEAR]

This **Change Request** sets out a variation or variations to the **Statement of Work** referenced above.

Signed for and on behalf of the Supplier: Signature: Name: [] Title: [] Date []	Signed for and on behalf of the Client: Signature: Name: [] Title: [] Date []
--	--

20250528164845796

Final Audit Report

2025-06-04

Created:	2025-06-02
By:	Sylvia Arentsen (sylvia.arentsen@pladisglobal.com)
Status:	Signed
Transaction ID:	CBJCHBCAABAAs5NBTfXFZqphd4hHzV-GmxSVL0KZVGqH

"20250528164845796" History

 Document created by Sylvia Arentsen (sylvia.arentsen@pladisglobal.com)

2025-06-02 - 10:50:18 GMT- IP address: 193.37.181.249

 Document emailed to dennis.teeken@pladisglobal.com for signature

2025-06-02 - 10:51:24 GMT

 Email viewed by dennis.teeken@pladisglobal.com

2025-06-04 - 16:04:02 GMT- IP address: 52.102.18.21

 Signer dennis.teeken@pladisglobal.com entered name at signing as D. Teeken

2025-06-04 - 16:04:45 GMT- IP address: 193.37.181.249

 Document e-signed by D. Teeken (dennis.teeken@pladisglobal.com)

Signature Date: 2025-06-04 - 16:04:47 GMT - Time Source: server- IP address: 193.37.181.249

 Agreement completed.

2025-06-04 - 16:04:47 GMT

FuturMaster owns and publishes software packages designed to optimise supply chain planning processes.

FuturMaster has provided the Client with information on its SaaS FM Cloud Services as described in Schedule B "Description of the Service". FuturMaster has also provided the Client with additional technical information in accordance with its requests.

This Agreement sets out the legal, financial and technical terms and conditions pursuant to which FuturMaster shall grant to the Client the right to access and use FuturMaster SaaS FM Cloud Services.

Article 1 - Definitions and interpretation

1.1 Definitions

Capitalised terms appearing in this Agreement shall have the meaning ascribed to them below:

"Affiliate": any company that, as of today's date or subsequent hereto, (i) controls one of the Parties, or (ii) is controlled by one of the Parties, or (iii) is controlled by any company under (i) above. "Control" shall mean to own, either directly or indirectly, more than fifty percent (50%) of the shares of such company or the majority of voting rights therein. Any company that does not meet the conditions set forth in this definition shall not be deemed to be an Affiliate of one of the Parties.

"Agreement": this Agreement, including the Recitals, these general terms and conditions, the Specific Conditions, the Schedules and the Annexes, as varied in accordance with Article 15.

"Client Data": all information which are collected, registered, used and/or processed by the Client through the Service, and which are provided to the Client or to which FuturMaster may have access.

"Confidential Information": means all information (whether written, oral or in electronic form) concerning the business and affairs of either party that the other Party obtains or receives as a result of the discussions leading up to or the entering into or the performance of this Agreement. For the avoidance of doubt, Confidential Information shall include the contents of this Agreement, any information regarding the existence and negotiation of the Agreement between the Parties as well as any information related to either of the Parties that is not known generally to the public, whether such information pertains to a Software Package and its components, a technique or a trade secret, or relates to technologies, software, formulas, data, algorithms, specifications or prototypes, clients, business plans, promotional activities, marketing, financing or any other commercial activities.

"Documentation": the user and technical documentation provided to the Client in electronic or paper format or on-line, which describes the features of the Service and/or FuturMaster standard use instructions for the Service, including any update to or any part of such documentation.

"Effective Date": the date on which this Agreement is executed.

"Infrastructure": the equipment and materials, operating systems, all communication networks which are not included in the Client Technical Requirements and are necessary for the supply of the Service

"Initial Period": the initial term of the Agreement before its first renewal, as defined in Article 12.1.

"Maintenance" or "Support": the support/maintenance services described in Schedule B.

"Materials": the equipment and materials, operating systems, all communication networks which are necessary for the supply of the Service, as set out in Schedule C "Client Technical Requirements".

"Planned Maintenance Period": the period necessary to FuturMaster for the management and evolution of the Infrastructure. FuturMaster will inform the Client of each Maintenance Period between 2 business days in advance and a minimum of 1 hour before any urgent maintenance operations.

"Scope of Use": the scope of the access and usage rights granted by FuturMaster for the Service, as set out in the Specific Conditions, and limited by the number of authorised users with simultaneous access, in the Territory in which these simultaneous access can be used by the Client and its Affiliates.

"Service": FuturMaster SaaS FM Cloud Services as described in Schedule B "Description of the Service".

"Service Fees" or "Subscription Fee": the fees that the Client must pay in accordance with Article 7 for the access and use of the Service, as set out in the Specific Conditions.

"Site": the premises or sites of a legal entity at which computers which will use the Service are located.

"Software Package": the standard version of the FuturMaster software package made available to the Client through the Service under its single executable version, together with its Documentation, the Updates and all copies, adaptations and modifications thereof, including each part of each of the components.

"Specific Conditions" : the specific terms and conditions for the access and use of the Service as set out in Schedule A, including the number of authorized users, the Scope of Use, the amount of the Service Fee and any other specific conditions agreed between the Parties.

"Third Party Software": software published and/or licensed by third parties which may be integrated into the Service.

"Territory": Worldwide

"Update": any new version, correction or temporary patch for the Service provided by FuturMaster, if such is available, to its clients. The Updates shall not include products, components and/or modules that are sold separately by FuturMaster for a specific complementary use.

"Users": the individuals, employed by the Client and which are authorized by the Client to use the Service.

1.2 Interpretation

Article, Schedule and paragraph headings shall not affect the interpretation of this Agreement.

A **person** includes a natural person, corporate or unincorporated body (whether or not having separate legal personality) and that person's personal representatives, successors and permitted assigns.

The Schedules form part of this Agreement and shall have effect as if set out in full in the body of this Agreement. Any reference to this Agreement includes the Schedules.

References to Articles and Schedules are to the Articles and Schedules of this Agreement and references to paragraphs are to paragraphs of the relevant Article or Schedule.

A reference to a **company** shall include any company, corporation or other body corporate, wherever and however incorporated or established.

A reference to a statute or statutory provision is a reference to it as amended, extended or re-enacted from time to time and shall include all subordinate legislation made from time to time under that statute or statutory provision.

Any words following the terms **including, include, in particular, for example** or any similar expression shall be construed as illustrative and shall not limit the sense of the words, description, definition, phrase or term preceding those terms.

Article 2 – Access and Use of the Service

2.1 Scope of the right to access and use the Service

FuturMaster hereby grants the Client a right to access and use the Service and the associated Documentation provided by FuturMaster under the Agreement, for the term defined in the Specific Conditions. This right of access and use the Service is granted to the Client on a non-exclusive, non-transferable, and non-assignable basis, for the sole use by Client for its own internal IT operations and to process its own data in the Material, on the Sites within the Territory subject to the authorized Scope of Use.

The Client may use the Software Package in the Territory for itself or on behalf of an Affiliate. The Client's Affiliates may use the Software Package subject to the following conditions:

- the Client must ensure that each such Affiliate expressly agrees to all of the provisions set forth in this Agreement and, more specifically, all of the obligations for which it is responsible as a user of the Service;
- the Client shall remain solely liable to FuturMaster for the payment of the Service Fees; and
- the Client shall remain exclusively liable to FuturMaster for the compliance of its Affiliates with the terms and conditions set out in this Agreement.

2.2 Delivery of the Service and Documentation

FuturMaster shall provide the Service and its Documentation in accordance with the conditions set out in Schedule A.

For the avoidance of doubt, the right to use the Software Package through the Service shall include the Updates and any new or improved versions of the Software Package provided by FuturMaster in connection with the Support services.

2.3 Client rights

It is a condition of this Agreement that the Client shall comply with the conditions of use relating to the Service set out in this Agreement, including the Specific Terms and Conditions. Client acknowledges and agrees that the right set out in Article 2.1 is granted by FuturMaster subject to the Client's agreement to comply with such terms and conditions.

Client shall not allow the Service and/or Documentation to be used by any third party, including in the event of an outsourcing or hosting. For the avoidance of doubt, any companies in the Client's group who are not Client's Affiliates shall be considered as third parties insofar as such companies have not been duly authorised by FuturMaster.

Article 3 – General obligations concerning collaboration

The Parties hereby agree and acknowledge that FuturMaster has supplied the Client with all the information necessary to understand the characteristics and features of the Service, as described in Schedules B. FuturMaster has also provided the Client with additional technical information, specifically with regards to the Client's Materials. The Client acknowledges that it has verified that the Service is adequate and meets its requirements and that it has verified the compatibility and adaptation of the Service with the hardware and software comprising its IT system and the Material.

FuturMaster has recommended the Client to ensure that it has all requisite internal expertise and resources for the purposes of performing its obligations under this Agreement and that its employees, agents and representatives (and its Affiliates, where applicable) will be provided with all necessary training to enable them to use the Service in accordance with this Agreement.

Each of the Parties shall actively cooperate with the other throughout the term of this Agreement with regards to the performance of their obligations under the Agreement. Client acknowledges that FuturMaster's delivery of the Service depends on the Client's performance of its contractual obligations in accordance with this Agreement.

In particular, the Client acknowledges and accepts that it shall provide to FuturMaster, at its sole expense and within the timescales requested by FuturMaster, any information, documents and resources that FuturMaster may request for the purpose of carrying out its obligations under the Agreement. In particular, the Client shall:

- provide FuturMaster with office space or other assistance and any other cooperation required by FuturMaster to be provided by its employees; and
- implement safeguards, security and virus control procedures on the IT system that it makes available to FuturMaster.

Client warrants that all such information and documents will be correct, concise and unequivocal. FuturMaster shall not be liable for any losses, damage or defects in the to the extent that such losses, damages or defects arise as a result of the provision of incorrect, incomplete or otherwise defective information or documents by the Client.

Article 4 - Intellectual Property

The Agreement shall not include the transfer of any intellectual property rights to the Client. All the elements which are part of the Service, the Software Package, the Third Party Software shall remain the property of FuturMaster or any licensor of Third Party Software, as the case may be. Consequently, the Client agrees and acknowledges that FuturMaster is the owner of the intellectual property rights in any copy, translation, modification, adaptation or application of the Software Package that may be created by FuturMaster or the Client, including any improvements or developments concerning the Software Package and/or the Service.

If a Client representative, employee or consultant is deemed to be the author/owner of any of the intellectual property rights of the elements mentioned in the paragraph above, the Client shall procure that such person transfers all such intellectual property rights to FuturMaster or to the licensor of Third Party Software. If such rights may not be transferred under applicable law or regulation, the Client shall procure that such person waives its rights therein or if such waiver is not legal, that such person grants an exclusive, irrevocable licence of such rights to FuturMaster or the licensor of Third Party Software, such licence to be free of charge and for an unlimited term on a worldwide basis. Such licence shall cover the use, marketing and modification of the relevant intellectual property rights without having to identify the author/owner or obtain its prior consent. Upon FuturMaster's request, the Client shall execute a written agreement with the author/owner setting out FuturMaster's rights or the rights of any licensor of Third Party Software provided for under this Article.

Client hereby warrants, represents and undertakes that it shall not infringe, directly or indirectly, the intellectual property rights of FuturMaster or of any licensor of Third Party Software. Client shall procure that its Affiliates, representatives, employees and consultants and any third party authorised by FuturMaster to use the Service, the Documentation pursuant to Client's request, shall not infringe, directly or indirectly, the intellectual property rights of FuturMaster or of any licensor of Third Party Software. Client shall not delete or modify the ownership notices on the Documentation and undertakes to reproduce and place such notices on any complete or partial copy of the elements composing the Service.

Article 5 – Warranties and indemnities

5.1 Service conformity

FuturMaster hereby warrants that the Service will function in the manner set forth in the Documentation for a term of ninety (90) days beginning on the Effective Date (the “**Warranty Period**”).

In the event of a defect, error or failure with respect to the Service which prevents the execution of all or part of the features provided for in the Documentation, FuturMaster shall correct the defective Service in accordance with Schedule B. FuturMaster shall proceed with such correction or replacement provided that the Client has: (i) notified FuturMaster of the defect, error or failure during the Warranty Period; (ii) not performed any modifications of the Service through the use of any person other than FuturMaster; . In order for FuturMaster to be able to make the necessary corrections, the Client shall provide it with a description and all information necessary to identify such defect, error or failure.

FuturMaster cannot warrant that:

- the Service is adapted to the Client's needs insofar as it is the Client and Client alone who verifies the adequate nature of the features and specifications provided in the Documentation compared with its own needs and objectives;
- the Service shall work continuously without error. Client acknowledges that the Service may contain defects and that some defects are not rectifiable and that it is not always necessary to rectify such defects. However when a defect is detected, FuturMaster commits to correct it in accordance with the service levels detailed in Schedule B. Additionally, FuturMaster shall endeavour to ensure that the Service does not contain any viruses. However, the Client acknowledges that it is not possible to exclude every possibility of a virus and that FuturMaster cannot provide any warranty in this regard. As a result, the Client shall be solely responsible for putting appropriate anti-virus protection in place to its Material and, if necessary, for taking out an insurance policy to cover the risks related to viruses;

5.2 FuturMaster's intellectual property rights in the Service

FuturMaster shall indemnify the Client against any legal action based on the Client's use of the Service pursuant to the Agreement which violates any third party intellectual property rights provided that:

- Client shall immediately notify FuturMaster of any claims or legal action brought by any third party claiming infringement of its rights by the Service (a “**Third Party**”);

FuturMaster shall be entitled to defend or settle, at its sole discretion, any threatened action, complaint or claim; and

- Client shall provide assistance to FuturMaster and shall allow FuturMaster to take sole control of any negotiations with the Third Party in order to execute a settlement.

The Client agrees and acknowledges that it shall not respond alone to any claim, complaint or legal action and/or defend itself alone in any judicial action or litigation brought against it by a Third Party or discuss or execute any agreement or settlement with a Third Party and undertakes, if it is named as a defendant, to immediately notify FuturMaster and collaborate with FuturMaster in accordance with this Article.

Upon receiving notification of any claim, complaint or legal action brought by any Third Party, FuturMaster may, subject to the terms and conditions set forth above, at its sole discretion and expense:

- modify the Service so that it no longer infringes while maintaining similar features, upon client's validation on the newly developed feature;
- obtain the right to continue to use the alleged infringing Service on behalf of the Client;
- provide the Client with software with substantially similar features and performance parameters; or
- request that the Client return the infringing Service, the Documentation and anything associated therewith. The Client shall then be entitled to a refund of all costs directly associated to the use of the software and Service Fees paid by the Client to FuturMaster for the use of the Service from the Effective Date to the date of return.

In the event of a settlement for which an amount is agreed upon by FuturMaster and the Third Party, FuturMaster shall pay the entirety of the amounts to be paid by the Client to the Third Party.

Notwithstanding the above provisions of this Article, the indemnity set out in the first paragraph of this Article shall not apply where a Service:

- was modified by Client or by a third party after it has been delivered by FuturMaster;
- has been used in conjunction with third party software, equipment or operating systems other than those set forth in the Schedules, to the extent that the infringement pertains to such combined use;
- remains in use by the Client in spite of a settlement agreement having been executed or after a definitive legal judgment has been rendered or if the Client fails to implement the modifications suggested by FuturMaster which would prevent any infringement from occurring; or
- is used by the Client in a way that does not comply with this Agreement, to the extent that any infringement arises out of the failure of the Client to comply with the Agreement.

In the event that any infringement is imputable to the Client and that a judgment has been rendered against FuturMaster with respect thereto, the Client shall indemnify FuturMaster for the entirety of the financial consequences incurred by FuturMaster, as per the judgement only, nothing outside of it, in relation to such and, more specifically, the Client shall indemnify and hold FuturMaster harmless for any damages, expenses, court costs, associated fees, and legal fees.

Article 7 – Service Fees Price and Payment

7.1 Service Fees

The Client shall pay FuturMaster the Service Fees in exchange for the right to use the Service in accordance with the Specific Conditions.

After the expiry of the Initial Period, the Service Fees shall increase for each Renewal Period in line with the index as provided for in Schedule A.

The amount of the Service Fees may be adjusted by FuturMaster in proportion with any enlargement of the Scope of Use instituted by the Client.

7.2 Invoicing and payment

All amounts payable under the Agreement exclude VAT and any other applicable taxes, which shall be the Client's sole responsibility.

The Client shall pay all FuturMaster invoices within forty-five (45) days end of the month from the invoice date and without withholding any amounts.

It is a condition of this Agreement that the Client complies with the invoice payment dates and failure to do so shall be considered a material breach for the purposes of Article 12.

If Client fails to make any payment due to FuturMaster under this Agreement by the due date for payment, then, without prejudice to any other remedies available to FuturMaster under this Agreement, the defaulting party shall pay interest on the overdue amount at the rate set out in the Late Payment of Commercial Debts (Interest) Act 1998.

In the event of non-payment of any Service Fees, FuturMaster reserves the right to suspend and/or terminate the Agreement at its discretion without incurring any liability to Client.

Article 8 - Information and audit

FuturMaster may also audit, at its own cost, one time during any consecutive 12 month period, during normal business hours and subject to written notice being provided to the Client, the Client's system logs in order to verify that the Client is using the Service within the limits that are set forth in the Scope of Use. The Client shall authorise such an audit no later than 10 days following receipt of FuturMaster's audit notification. If the report or audit performed by FuturMaster reveals that the Client has exceeded the Scope of Use, the Client shall pay FuturMaster, as soon as possible, the Service Fees corresponding to the Client's extended use, in accordance with the fee schedules then in effect.

Article 9 - Mutual obligation of confidentiality

The Parties (i) hereby commit to take all measures necessary in order to ensure the strictest confidentiality of all the Confidential Information and (ii) agree that any Confidential Information received from the other Party shall only be used strictly as necessary for the performance of the Agreement. This obligation shall not be applicable insofar as any Information:

- is generally available to the public or become available to the public by any means other than the violation of this Article;
- is obtained by a Party from a third party not under an obligation of confidentiality with regards to the information; or
- was developed independently by the receiving Party prior to receipt of such information from the disclosing Party.

Each Party may disclose the Confidential Information pursuant to a court order or as required by a public entity or governmental authority. In such circumstances, the receiving Party shall immediately notify the disclosing Party and shall, insofar as such is possible, limit the scope of the disclosure and prevent the information from being disclosed to the public. Any delay or failure to act by the disclosing Party shall be deemed as a waiver of this right or as a waiver of the right to make any future claim for breach of contract in connection to the Agreement.

Each Party must, upon the request of the other Party and/or upon the termination of this Agreement, return all of the Confidential Information pertaining to the other Party to it, including all copies, whether complete or partial, that is in the receiving Party's possession.

Notwithstanding any other provision of this Agreement, FuturMaster is hereby expressly authorised by the Client to publicise details of the commercial relationship established under this Agreement for the purpose of promoting FuturMaster's business to prospective and existing clients and to use Client marks (including Client's trademarks and logos) in this regard.

Article 10 - Liability

FuturMaster commits, as a performance obligation, to maintain the Service in conformity with the Documentation for the entire duration of the Contract. FuturMaster shall also perform its obligations in a professional manner in accordance with accepted industry practices and standards.

FuturMaster shall only be held liable for direct losses or damages suffered by the Client as a result of a fault caused by FuturMaster during the performance of this Agreement. For the avoidance of doubt, the following losses shall be considered "direct" for the purpose of this Agreement: loss of orders, customer penalties, loss of sales or production. Damages caused after a modification of FuturMaster's configuration output by a pladis employee shall not be considered as a fault caused by FuturMaster.

Additionally, FuturMaster shall not in any circumstances have any liability for any losses or damages which may be suffered by the Client (or any person claiming under or through the Client, including its Affiliates), whether the same are suffered directly or indirectly or are immediate or consequential, and whether the same arise in contract, tort (including negligence) or otherwise howsoever, which fall within any of the following categories: any indirect or consequential loss as defined by Articles 1231-3 and 1231-4 of the French Civil Code arising under or in connection with this Agreement; OR any financial or economic loss, loss of profit, loss of use, loss of goodwill, loss of reputation, anticipated savings, loss or corruption of data and files; the cost of replacement products, software, services or technologies, or any action taken against the Client and/or any of its Affiliates by any third party.

The Client undertakes to take all measures and actions to mitigate its losses and damages. The Client shall be responsible for saving and backing-up all Client data inputted in the Service in order prevent the loss or damage thereto and shall verify that back-ups operations take place at regular intervals.

FuturMaster's total aggregate liability to Client and/or its Affiliates, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, arising under or in connection with this Agreement shall be limited to one million five hundred thousand euros (€ 1 500 000).

Subject always to the following paragraph, the liability of FuturMaster for any fault under or in connection with this Agreement, whether arising from negligence, breach of contract or all other torts shall be as set out in this clause 10. To the extent permitted by law, FuturMaster shall have no liability to the Client under this Agreement other than as expressly set out in this Agreement and this clause sets out the entire financial liability of FuturMaster (including any liability for the acts or omissions of its personnel, agents and sub-contractors), except the financial liability resulting from applicable mandatory (*d'ordre public*) legal provisions.

Nothing in this Agreement shall limit or exclude a Party's liability for (i) death or personal injury arising from its negligence or that of its employees, agents or subcontractors or (ii) fraud, theft or willful misconduct.

The Parties expressly agree that should any limitation or provision contained in this Clause 10 be held to be invalid under any applicable law, it shall to that extent be deemed omitted, but if any Party thereby becomes liable for loss or damage which would otherwise have been limited, such liability shall be subject to the other limitations and provisions set out herein.

Accordingly, the Client expressly agrees that the exclusion and limitation of liability clauses set out in this Agreement:

- (a) reflect the commercial terms agreed between the Parties;
- (b) shall extend to benefit those members of the group companies of FuturMaster which provide any Services from time to time; and
- (c) are reasonable and are accepted by it after careful consideration.

To the extent permitted by law, all legal proceedings that are brought against FuturMaster by the Client under or in connection with this Agreement shall be commenced within twelve (12) months of the Client (and/or its Affiliates) becoming aware of the matters to which the legal claim in question relates, but nothing in this clause shall have the effect of extending the limitation period during which any legal proceedings may be brought.

Article 11 - Insurance

Each Party hereby warrants and undertakes to maintain those insurance policies that are necessary in light of their respective obligations under the Agreement.

Specifically, FuturMaster warrants that it shall have in place for the term of this Agreement professional liability insurance with a reputable insurance company which shall cover any material or intangible damages arising out of the performance of its services by its employees, representatives and agents.

FuturMaster shall provide the Client, upon its request, with reasonable proof that such insurance cover is in place.

Article 12 - Termination

12.1 Term

This Agreement takes effect on the Effective Date for a term of Five (5) years (the "Initial Period"). After the Initial Period, this Agreement will be renewed after validation from both parties for consecutive periods of one (1) year ("Renewal Period").

12.2 Termination

Without affecting any other right or remedy available to it, either Party may terminate this Agreement with immediate effect by giving written notice to the other Party if:

- the other Party commits a material breach of any term of this agreement which breach is irremediable or (if such breach is remediable) fails to remedy that breach within a period of (30) days after being notified in writing to do so;
- a petition is filed, a notice is given, a resolution is passed, or an order is made, for or in connection with the winding up of that other Party other than for the sole purpose of a scheme for a solvent amalgamation of that other Party with one or more other companies or the solvent reconstruction of that other Party;
- an application is made to court, or an order is made, for the appointment of an administrator, or if a notice of intention to appoint an administrator is given or if an administrator is appointed, over the other Party;
- the holder of a qualifying floating charge over the assets of that other Party has become entitled to appoint or has appointed an administrative receiver;
- a person becomes entitled to appoint a receiver over the assets of the other Party or a receiver is appointed over the assets of the other Party;
- a creditor or encumbrancer of the other Party attaches or takes possession of, or a distress, execution, sequestration or other such process is levied or enforced on or sued against, the whole or any part of the other Party's assets and such attachment or process is not discharged within 14 days;
- the other Party suspends or ceases, or threatens to suspend or cease, carrying on all or a substantial part of its business.

In each of these cases, upon termination, each Party shall return to the other Party all Confidential Information in its possession belonging to the other and shall take any necessary measures in order to destroy any copy, except for a single archive copy necessary for responding to its legal tax and accounting obligations, such copy being used exclusive for this purpose.

Upon termination of this Agreement, the Licence shall terminate and Client agrees to: (a) stop using the Service and Documentation and affirm in writing this discontinuation to FuturMaster; and (b) erase/destroy/delete any copy of the Service and/or Documentation or return the same to FuturMaster in their entirety.

Any use, even partial, of the Service and/or Documentation after the date of termination of this Agreement will constitute an infringement of FuturMaster's intellectual property rights, likely to cause civil and/or criminal legal action.

The expiration or termination of all or part of the Agreement does not exempt the Client from respecting its prior obligations, particularly paying the Service Fees.

Following the termination of this Agreement, any provision which by its nature is intended to survive termination shall continue to apply.

Article 13 - Force Majeure

Neither Party shall be in breach of this Agreement nor liable for delay in performing, or failure to perform, any of its obligations under this Agreement if such delay or failure result from events, circumstances or causes beyond its reasonable control as defined under Article 1218 of the French Civil Code. For the purposes of this Agreement, circumstances or causes beyond a Party's reasonable control shall include labour conflicts, fire, flood, riots, public disorder, weather events, injunction or restriction by a government entity, war as well as failure and/or blockage of telecommunications or information or electricity networks.

In such circumstances the affected Party shall, without delay, notify the other Party and the time for performance shall be extended by a period equivalent to the period during which performance of the obligation has been delayed or failed to be performed. If the period of delay or non-performance continues for more than one (1) month, the Party not affected may terminate this Agreement by giving eight (8) days' written notice to the affected Party.

Article 14 - Non-solicitation of personnel

Each of the Parties agrees to not approach nor solicit any member of the other Party's personnel with whom it has been in contact with, with the intention to employ or have them work for it, whether directly or indirectly, without the prior written authorisation of the other Party, even if the initial enquiry is made by the relevant individual.

This prohibition applies for the duration of this Agreement and for the period of two (2) years following its termination.

In the case of a violation of this prohibition, the breaching Party shall be required to immediately remunerate the other Party, as liquidated damages, a fixed sum equal to 12 months of the last monthly gross salary of the relevant individual plus all the costs associated with recruiting a replacement.

For the avoidance of doubt, the provisions of this clause do not apply to an employee applying to a publicly available job offer.

Article 15 - Variation and entire agreement

The Agreement may only be varied in writing, such variation to be duly signed by an authorised representative of each Party.

This Agreement represents the entire agreement and obligations existing between the Parties and supersedes and extinguishes all previous drafts, agreements, arrangements and understandings between them, whether written or oral, relating to its subject matter, including the Client's general product or service purchase conditions.

Article 16 - Assignment and subcontracting

The Client may not assign its rights or obligations arising under the Agreement without prior written agreement from FuturMaster, such consent not to be unreasonably withheld or delayed.

FuturMaster may not assign its rights or obligations arising under the Agreement without prior written agreement from the Client, such consent not to be unreasonably withheld or delayed.

Article 17 - Notification

Any notification or communication which must be or can be sent by one of the Parties to the other Party in reference to this Agreement shall be hand delivered or sent by registered letter to the address of this Party as specified at the beginning of this Agreement or to any other address which may be provided in writing by a Party.

Article 18 - Waiver

The fact that one of the Parties does not enforce the application of any one of the Agreement dispositions or accepts its non-performance, whether permanently or temporarily, shall not be interpreted as nor constitute a waiver of this Party's rights to enforce application of this this or any other provision of the Agreement.

Article 19 – Severability and third party rights

The fact that one of the Parties does not enforce the application of any one of the Agreement dispositions or accepts its non-performance, whether permanently or temporarily, shall not be interpreted as nor constitute a waiver of this Party's rights to enforce application of this this or any other provision of the Agreement.

Article 20 - Governing law and jurisdiction and dispute resolution

20.1 Governing law and jurisdiction

This Agreement and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with French law.

Subject to the dispute resolution provisions set out in Article 20.2, each Party irrevocably agrees that the Courts of Paris (France) shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation (including non-contractual disputes or claims).

20.2 Dispute resolution

Any dispute arising out of or in connection with this Agreement or the performance, validity or enforceability of this Agreement, shall be submitted to representatives of each of the Parties having the capacity and authority to negotiate and execute settlements. If possible, these representatives shall be of a higher level within each Party's organisation than those persons responsible for the daily management of the Agreement. Each Party agrees that its representatives shall meet promptly and in any event no later than ten (10) days after receiving written notice of the dispute from the other Party.

The provisions of this Article shall not prevent the Parties from commencing proceedings in relation to the dispute at any time, in order to preserve their rights.

List of Schedules

Schedule A : FuturMaster SaaS FM Cloud Service Specific Terms and Conditions

Schedule B: Description of FuturMaster SaaS FM Cloud Service

Schedule C: Client Technical Requirements

Schedule A - FuturMaster SaaS FM Cloud Service Specific Terms and Conditions

These Special Conditions form an integral part of the Contract and supplement the General Conditions of the FuturMaster Service of which the Client acknowledges having read. By signing the Special Conditions, the Customer accepts without restriction or reservation the General Conditions and undertakes to respect all their provisions.

In the event of a contradiction between the terms of these Special Conditions and the General Conditions, the provisions of these Special Conditions prevail. All terms appearing in capital letters in these Special Conditions have the meaning given to them in the General Conditions.

The Parties:

THE PROVIDER	
Name	FuturMaster
Headquarter	1 cours de l'île Seguin, 92100 Boulogne-Billancourt
N° RCS	B 393 515 671
N° VAT	FR 86 393 515 671

THE CLIENT	
Name	pladis France
Headquarter	27 Route du Mortier Vannerie, 44120 Vertou (France)
N° RCS	856 801 519
N° VAT	FR 17856801519

THE CLIENT	
Name	Koninklijke Verkade NV
Headquarter	Westzijde 103 PO Box 5 1500 EA Zaandam Netherlands
N° KVK	35000477
N° VAT	NL007426586B01

THE CLIENT	
Name	pladis Belgium SRL
Headquarter	1000 Bruxelles, Avenue du Port 86C boîte 204
N° RPM Bruxelles division francophone	BE0695.939.267
N° VAT	BE0695939267

1. SERVICE FINANCIAL CONDITIONS

FM CLOUD SERVICES			
SERVICE	QUANTITY	MONTHLY UNIT PRICE (EXCLUDING VAT)	TOTAL MONTHLY PRICE (EXCLUDING VAT)
CORE APPLICATION SERVER	2	1190.00 €	2 380.00 €
FM DEMAND PLANNING	1	1 140.00€	1 140.00 €
FM TRADE PROMOTION MANAGEMENT	1	1 350.00 €	1 350.00 €
FM CLOUD SERVICES	2	1 600.00 €	3 200.00 €
FULL USER ACCESS	14	350.00 €	4 900.00 €
COLLABORATIVE USER ACCESS	14	30.00 €	420.00 €
VIEWER ACCESS	6	10.00 €	60.00 €
TOTAL ANNUAL RECURRING COST			161 400.00 €

2. PAYMENT TERMS

A monthly invoice will be sent to the Client. Payment is to be done within the 45 days end of the month after the invoicing date.

3. INDEXATION

At the end of each year, the Service Fee will be revised annually following the evolution of the SYNTEC Index and according to the following formula:

$$P = P_0 * I/I_0$$

which :

- P = New yearly fee
- P_O = Yearly fee for the previous year
- I_O = Syntec Index 1 year before the anniversary date
- I = Syntec Index at the anniversary date

Syntec Index can be consulted through the following url : <https://www.syntec-ingenierie.fr/indice-syntec/>

Schedule B – Description of FuturMaster SaaS FM Cloud Service

SCOPE OF THE SERVICE

FuturMaster SaaS FM Cloud Service is composed of the following services:

Service	Content
Infrastructure and Operation	Provision of Infrastructure and Hosting for FuturMaster Software Package as described in the section "Infrastructure and Operations".
Update /new version of the Software Package	Update/new version of FuturMaster Software Package as described in the section « Update/new version of FuturMaster Software Package »
Software Package Technical Support	Access to the Technical Support for the Software Package as described in the section « Software Package Technical Support ».
FuturMaster Software Package	Supply of the access to FuturMaster Software Package modules as described in the section « Modules of the Software Package ».

INFRASTRUCTURE AND HOSTING

Data-Centers

The data centers in which the Client Data will be hosted are in one of the following countries:

- France
- Ireland
- South Africa
- Singapore
- Brazil

Safety

FuturMaster ensures the material and software protection of the global operating platform, the process and the communications made on the operating platform.

Undertakings

FuturMaster warrants a service level of 99,50% for the availability of the Infrastructure. This service level is measured on the basis of the following formula:

$$(TOM-TIS) \times 100 / TOM$$

TIS corresponds to the "**Monthly Unavailability Period (TIS)**": the total of all monthly period during which the Service is not available for the Client excluding the Planned Maintenance Period.

TOM corresponds to the "**Service Availability Period (TOM)**" : the monthly period during which the Service is available for the Client, 24h/24h, 7 days per week, excluding the Planned Maintenance Periods.

On the basis of these service levels, the penalties/LDs that may be due by FuturMaster are defined in the table below:

RATE OF INFRASTRUCTURE AVAILABILITY (IA)	FUTURMASTER PENALTIES
99,49% > IA > 99,40%	1% of the monthly Service Fee
99,39% > IA > 99,30%	5% of the monthly Service Fee
99,29% > IA > 99,20%	10% of the monthly Service Fee
99,19% > IA > 99%	20% of the monthly Service Fee

The penalties/LDs will not exceed annually an amount corresponding to two months of Service Fees.

The penalties/LDs will be applicable further to the receipt of a formal request from the Client sent by e-mail within twenty (20) days following the event giving right to the penalties/LDs.

In addition, FuturMaster warrants the following :

- **Guaranteed Response Time (GTI) :**

Deadline from the reporting of an incident on the supervision tools or from a notification made by the Client to FuturMaster support department and the beginning of the operation of support.

- **Guaranteed Recovery Time (GRT) :**

Time to restore the Service, from the beginning of the intervention (see GTI) until the end of the incident

Priority	<u>Guaranteed Time (Working hours)</u>		<u>Guaranteed Time (Non Working Hours)</u>	
	GTI	GTR	GTI	GTR
1	15 mn	4h	30 mn	4h
2	15 mn	4h	1h	8h
3	30 mn	8h	N/A	N/A

The level of priorities are determined depending of the defect concerned:

PRIORITY LEVEL	SEVERITY	DEFINITION
1	Blocking	Bug/Defect resulting in the total unavailability of the Service for all Users
2	Major	Bug/Defect resulting in material negative effects on the business of the Client or in the unavailability of important functionalities and reducing the access response time to the Service.
3	Minor	Bug/Defect resulting in the total unavailability of certain minor functionalities of the Service

UPGRADING THE SOFTWARE PACKAGE VERSION

As part of the provision of the services of this contract, FuturMaster will implement the latest available version of the FuturMaster Software Package every 36 months.

The Customer will be informed 3 (three) months prior to the provision of the new version of the upgrade execution schedule and the necessary availability of the Customer's point.

SOFTWARE TECHNICAL SUPPORT

Definitions

Anomaly": any error in the design, or realization, or programming of the Software Package that prevents the normal use of all or part of the software Package or causes an incorrect result or action while the Software Package is used in accordance with the instructions.

"**Blocking anomaly**": Anomaly making it impossible for users to use one or more essential features of the Software Package.

" **Major Anomaly** ": an Anomaly causing limitations or restrictions in the use of one or more essential functions of one or more files of the Software Package.

" **Minor Anomaly** ": an Anomaly without significant impact on the use of the Software Package and/or Adaptations.

Object

The purpose of this Software Technical Support Description is to determine the conditions under which FuturMaster will provide the Customer with the Software Package corrective support services included in the Service, described below.

Support

The scope of corrective maintenance

As part of the corrective support, FuturMaster takes care of the correction of Anomalies of any kind of the Software Package.

The Client undertakes to communicate, by e-mail, to FuturMaster a description of the Anomaly sufficiently detailed to allow it to reproduce it in its own environments.

For each Anomaly, the Client will send FuturMaster, by e-mail, a description of the Anomaly encountered. After classification of the Anomaly thus described by the Client, FuturMaster undertakes to ensure its correction remotely.

For Anomalies seriously disrupting the organization of the company or likely to jeopardize its operation in the very short term, FuturMaster will propose, if possible and necessary, a temporary workaround pending the final correction.

The Customer will be able to obtain information on the progress of the processing of his request as part of the Procedure for the correction of Anomalies. As such, FuturMaster undertakes to provide the status of the treatment of the Anomaly, the next steps planned and the name of the person in charge of monitoring the treatment of the Anomaly in its organization as well as a reminder of the actions and information expected from the Client.

The investigation work carried out by FuturMaster and its intervention gives rise to additional invoicing, at the current rate, if the Anomaly results from the following situations:

- accidents, negligence, misuse of the Material, poor quality or irregularity of the power supply;
- failure to comply with the Customer's obligations set out in this Annex;
- Anomalies caused by an intervention or attempted intervention carried out by the Client outside the simple control operations prescribed by FuturMaster;
- Anomalies caused by a defective environment, not conforming to the functionalities described in Appendix C of the Agreement, or different from the initial environment.

Exclusion from the scope of patch support:

The corrective maintenance service does not include:

- interventions on software other than the Software Package and in particular the Operating System used in the Material;
- any troubleshooting or intervention on the Infrastructure
- more generally, any incident that does not prove to be an Anomaly of the Software Package;
- any on-site intervention.

Software Support intervention times

FuturMaster's Software Support service is available every working day from Monday to Friday, except on public holidays, from 9am to 12pm and from 2pm to 6pm, for each local time zone where the Service is used. FuturMaster reserves the right to modify its schedules and will notify the Client of its new time slots, by any means at its convenience.

As part of the provision of corrective support, FuturMaster undertakes to intervene within a period of:

- 24 hours in case of Major or Minor Abnormality;
- 8 hours in case of blocking anomaly.

In case of exceeding the aforementioned deadlines, FuturMaster shall pay the Client penalties for late intervention (hereinafter designated: penalties for late intervention) calculated as follows:

$$P = R * J / 500$$

R is the amount of the last Annual Service Fee paid to FuturMaster;

J corresponding to the number of days of late working from receipt of the formal notice sent by the Customer.

The Parties agree that the amount of the Late Response Penalties may not exceed 5% of the annual amount of rent for the Service for the current annual period.

Obligations of the Client

The proper performance of Support services by FuturMaster requires the Client to comply with the following obligations:

- knowledge of the use of the Service through the practice of the training courses offered to the Customer in the installation of the system;
- compliance with the rules of use of the Service, in particular those relating to the successful completion of the programs;
- the Customer's cooperation in maintenance operations;
- record in a register all anomalies in the operation of the Software Package.

The Client shall designate from among its staff two contact persons responsible ("Client Contact Persons") for the permanent relationship with FuturMaster. These Customer Interlocutors will be Laurent Sardi (Laurent.sardi@futurmaster.com).

DESCRIPTION OF THE SOFTWARE FEATURES OF THE SERVICES

FuturMaster is a decision support system for supply chain management in the field of forecasting, planning and optimization.

FuturMaster Prediction

Modules: Database, Analyzer, Forecasting Modeling, Business Forecasting, Bursting, Display Management, Budget

FuturMaster Forecasting offers rich features for calculating the forecast:

- Appropriate forecast models for each timeline: day, week, month
- Multidimensional database
- Promotion management: impact evaluation, calculation of cannibalization effects, display and batch management.
- Simulation: commercial objective, price increase, SEO, market share gain, weather effect.
- Calendar and holidays
- Product lifecycle management: Launch and scheduled shutdown.
- process top-down, bottom-up, middle out
- Collaborative processes
- budgets and plans
- Monitoring of forecast quality and performance indicators

Functional description of the forecast function:

Database

All the power of **FuturMaster** is revealed in the ability to make forecasts at any level of its database (product, family, region, distribution channel), from the most detailed to the most aggregated.

In particular, it makes it possible to manage a complex product repository and ensures a multidimensional view of the activity.

The database has three hierarchical axes that can be, for example, a product axis, a geographical axis, and a customer axis. It is thus possible to study in this case a given article, distributed through a given distribution channel in a certain geographical area.

In addition to the hierarchical structure, **FuturMaster** also allows the creation of non-hierarchical (relational) links called "criteria" that can be used for each of the three dimensions.

The axes of analysis and grouping can be either hierarchical dimensions, criteria or a combination of both.

The choice of a level of forecasting with **FuturMaster** is fundamental because it will allow:

- to ensure a better reliability of forecasting thanks to statistical processing on a minimum of data, at a level of stability over time;
- limit the workload of user(s) by working on an appropriate number of references.

Reporting and ADD (Dynamic Data Analysis)

The reporting system uses all the power of the database and allows you to select, sort, consult, calculate, prioritize, "see" information in multiple way as detailed in the list below:

- by products
- by family
- by geographic areas
- by distribution channels
- by size, color,...
- by product managers,...
- or any combination of these.
- Breaks and sub-totalizations sorts are automatic.
- The data are detailed or aggregated, raw or transformed, presented:
 - in days, weeks, months, bimestres, quarters or years
 - by volume, in one or more units of measurement
 - in value, in one or more currencies

FuturMaster acknowledges that the above-mentioned list is not exhaustive. The Service configuration could enable many other analyses.

Analyzer

Thanks to this module, which uses dynamic query technology, it is possible to perform dynamic sorting in the multidimensional database. Thus, cross-analyses can be performed on all or part of the database by moving information in a row or column using the "drag and drop" technique.

Forecasting, Modelling

It allows an automatic calculation of forecasts by:

- a dynamic analysis of time series according to a multiplying decomposition scheme into trend (level and slope) and seasonality
- Parameter optimization with a self-adaptive model that calculates the optimal parameter values for each period by measuring the forecast deviations.
- taking into account exceptional events with automatic impact calculation (this quantification is essential to correctly assess changes in mean or seasonality and isolate random differences).
- taking into account external calendars or series (working days, mobile holidays, scope of sale,...).

It has turn signals or parameters, which allow you to:

- detect trend reversals,
- measure the stability of seasonality,
- indicate the presence of an exceptional event.

It is adapted to the activity or calendar of companies:

- calendar year or fiscal year

It perfectly matches the needs of those responsible for forecasting:

- forecasts calculated on historical terms of, volume or value,
- variable forecast horizon,
- Modeling applied to elementary series or series groupings.

With this module, the user will define the series modeling parameters at the desired level of detail.

Monthly modeling uses an endogenous approach based on self-adapted exponential double smoothing.

From a history of 5 years in months, we will look for the monthly seasonality (the weight of each month in the year). Then, having erased the influence of monthly seasonality, an exponential double smoothing is applied with the possibility of self-adaptation. To the well-known advantages of exponential smoothing, self-adaptation adds an automatic adjustment of the sensitivity of smoothing operators. This technique continuously adjusts the smoothing parameters according to the observed deviations.

Many other models are available: Winters, Linear regression, Polynomial regression, Mean, Exogenous models,

Then, the user will integrate his "market intelligence" by taking into consideration the events of exceptional type (price change, premium, promotion, special action ...).

This integration is done in two stages:

- in the past: detection and correction of events in a forced way (exceptional order for example) or automatically (when we do not know the exact amount of the impact of the event).

- in the future: integration of a clearly identified exceptional event or impact simulation by FuturMaster from a library of past exceptional events.

Business Forecasts

The action plan defined for each player, market estimates, overall sales volume estimates may be kept in the "commercial forecasts" database.

The user will then be able to conduct his analysis from this module and work on different histories corresponding to different stages in the development of his forecast (forecast in preparation, validated forecast, revised forecast ...).

The features of this module are:

- Initialization of business forecasts from data or forecasts or objectives or simulations calculated by **FuturMaster**.
- Monitoring and revising business forecasts makes it possible to compare achievements with forecasts.
- Validation of business forecasts saves business forecasts

This module also allows you to adjust the forecast calculated by **FuturMaster** with functionalities comparable to those of a spreadsheet.

Valorization

FuturMaster manages the entire forecast valuation process (CA & Margin)

The hierarchical organization of the company's budgets is replicated in FuturMaster which automatically consolidates the data or ensures the distribution of a budget line on all the lower levels.

Disaggregation

The existence of a multidimensional data structure makes it possible to make a forecast at the desired level. The bursting module will make it possible to translate a forecast calculated at an aggregated level into a forecast exploded at a lower level useful for production, purchasing, etc.

The disaggregation of series is done dynamically or by batch taking into account different configurable disaggregation rules. It provides the ability to force a value for the burst ratio.

Exploding kit management

This option associated with the features of the bursting module is essential to translate a kit, display, box, display or heterogeneous batch forecast... in anticipation of components.

GLAS.61463 allows to manage multi-variety, multi-family, multi-segment, multi-brand kits

Schedule C: Client Technical Requirements

Prerequisite Clients are required for the proper operation of the service which is customer responsibility. They are composed of 2 types :

Technical Prerequisite :

In order to access to the service, the Client acknowledge to have the following technical configuration when the service will start :

Pentium 4 (2GHz minimum) or Dual Core (1.5GHz minimum)

- 500Mo of RAM minimum for OS
- Windows 32 bits or 64 bits (Windows 7, 8.1 et 10)
- Display min: 1024x768, 65000 colors (16 bits)
1920x1080 is recommended

Working station will have internet connection with a bandwidth of 100 kbps minimum by PC. Internet navigator will be used :

- Mozilla
- Chrome
- Internet Explorer
- Safari en version

User Prerequisite :

The client acknowledge to have the right skills to have access and to use the Service.

Schedule D: Data Security

1. **Purpose.** This Schedule D summarizes the technical and organizational measures that Supplier presently has implemented to protect Customer Data from accidental or unlawful destruction, loss, alteration, unauthorized disclosure, or access. Supplier may upgrade such measures or add additional measures from time to time, for example, as a result of the development of regulations, technology and other industry considerations. In any event, the implemented technical and organizational measures shall ensure a level of security appropriate to the risks presented by the Processing and the nature of the Customer Data to be protected.
2. **Information Management System.** Supplier shall maintain a written information security management program sufficient to protect all data submitted to Supplier and/or stored within Supplier's products or services ("Services") or systems utilized by Pladis pursuant to this Agreement ("Proprietary Data") against accidental or unlawful destruction, loss, alteration, unauthorized disclosure, or access. The information security management program shall be updated as needed to adapt to changes in applicable legal and regulatory requirements, best practices and industry standards related to privacy and data security. Supplier shall use commercially reasonable and appropriate methods and safeguards to protect the confidentiality, availability, and integrity of Proprietary Data. Supplier adheres, and at all times will adhere, to information security practices at least as stringent and protective of Proprietary Data as those set forth in ISO 27001 and ISO 27017 (or substantially equivalent or replacement standards) or other generally accepted authoritative standards (e.g., SSAE 16, SOC2).
3. **Asset Inventory.** Supplier shall maintain inventories of all computing equipment and media used in connection with any processing of Proprietary Data. Access to such inventories is restricted to authorized Supplier personnel.
4. **Access Policy.** Supplier shall enforce an access control policy (physical, technical and administrative) based on least privileges principles.
5. **Authorization.** Supplier maintains an authorization management system designed to ensure that only authorized Supplier personnel (technical and non-technical) are granted access to systems containing Proprietary Data.
6. **Usernames.** All Supplier accessing systems containing Proprietary Data have a separate, unique username. Deactivated and expired usernames are not recycled or otherwise granted to other individuals.
7. **Restrictions.** Supplier restricts access to Proprietary Data solely to Supplier personnel who have a need to access the Proprietary Data in connection with the Services or as otherwise required by applicable law.
8. **Authentication.** Supplier uses industry standard practices, including strong authentication, to identify and authenticate all Supplier representatives (or purported representatives) who attempt to access the Supplier network or information systems. Where authentication credentials of Supplier personnel are based on passwords, Supplier requires that such passwords meet minimum requirements for length and complexity, including those minimum requirements that Customer communicates to Supplier. Supplier maintains practices designed to ensure the confidentiality and integrity of passwords when assigned, distributed and stored. Accounts of Supplier personnel are locked out in case of repeated attempts to gain access to the information system using an invalid password.
9. **Encryption.** Supplier encrypts Proprietary Data at rest within the Services using ciphers at least as strong as 256-bit AES. Proprietary Data in transit to and from the Services is transferred to/from the Services across encrypted network connections and/or protocols (i.e., HTTPS and/or VPN). Backups of Proprietary Data are encrypted and stored in a secondary data center.
10. **Network Security.** Supplier utilizes an enterprise-class security information and event management (SIEM) system and maintains firewalls and other control measures (e.g., security appliances, network segmentation) to provide reasonable assurance that access from and to its networks is appropriately controlled.
11. **Security Updates.** Supplier uses reasonable efforts to ensure that the Services operating systems and applications that are associated with Proprietary Data are patched and otherwise secured to reduce the likelihood and mitigate the potential impact of security vulnerabilities in accordance with Supplier's patch management processes and within a reasonable time after Supplier has actual or constructive knowledge of any critical or high-risk security vulnerabilities. Supplier conducts vulnerability testing on a monthly basis.
12. **Malicious Software.** Supplier maintains anti-malware controls to help prevent malicious software from causing accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to Proprietary Data.
13. **Physical Security.** Supplier maintains physical security safeguards at any facilities where Supplier hosts Proprietary Data. Physical access to such facilities is only granted following a formal authorization procedure and access rights are reviewed periodically. Such facilities are rated as Tier 3 data centers or greater, and access to such facilities must be limited to identified and authorized individuals. Such facilities use a variety of industry standard systems to protect against loss of data due to power supply failure, fire and other natural hazards.
14. **Backups.** Supplier provides 24/7 managed backup services that include Proprietary Data stored in the primary site backed up on at least a daily basis to a secondary site. Supplier provides backup services for all components of the solution included in the Services. Backups are maintained for a period of ninety (90) days in the primary data center, and ninety (90) days in the secondary data center.

15. **Independent Assessments.** On an annual basis, Supplier has an independent third-party organization conduct an independent assessment of the standards set forth in this Schedule D. Additionally, Supplier undergoes penetration testing, conducted by an independent third-party organization, on an annual basis
16. **Data Management.** Supplier maintains commercially reasonable controls for information governance and data management in connection with the Services. Supplier destroys, deletes, or otherwise makes irrecoverable Proprietary Data upon the disposal or repurposing of storage media. Proprietary Data for each Customer is logically separated from the Proprietary Data of other Supplier customers.
17. **Breaches.** Supplier shall (a) notify Customer of a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, Proprietary Data transmitted, stored or otherwise Processed by Supplier, without undue delay after becoming aware of the Proprietary Data breach and, in any event, within 24 hours, and (b) take reasonable steps to mitigate the effects and to minimize any damage resulting from the Proprietary Data breach.

Execution page

Signed by

[]

duly authorised for and on behalf of
FuturMaster

Signé par :

Yacine ZEROUAL

54CD30E327CC4A9...

sign here:

[General Manager]

print name:

Signed by

Tim Brett

duly authorised for and on behalf of
pladis France

sign here:

President

print name:

Signed by

Baris Oner

duly authorised for and on behalf of
pladis Belgium SRL

sign here:

Director

print name:

Signed by

Dennis Teeken

duly authorised for and on behalf of
Koninklijke Verkade NV

sign here:

Director

print name:

D. Teeken

D. Teeken (Jun 4, 2025 18:05 GMT+2)

Contract FuturMaster FM Could Services Agreement - General Terms and Conditions

Final Audit Report

2025-06-04

Created:	2025-06-02
By:	Sylvia Arentsen (sylvia.arentsen@pladisglobal.com)
Status:	Signed
Transaction ID:	CBJCHBCAABAAIqZ4wTSzZw1HOuT_A36738ShAjJ7stk

"Contract FuturMaster FM Could Services Agreement - General Terms and Conditions" History

 Document created by Sylvia Arentsen (sylvia.arentsen@pladisglobal.com)

2025-06-02 - 10:48:09 GMT- IP address: 193.37.181.249

 Document emailed to dennis.teeken@pladisglobal.com for signature

2025-06-02 - 10:49:38 GMT

 Email viewed by dennis.teeken@pladisglobal.com

2025-06-02 - 10:51:40 GMT- IP address: 52.102.16.149

 Signer dennis.teeken@pladisglobal.com entered name at signing as D. Teeken

2025-06-04 - 16:05:27 GMT- IP address: 193.37.181.249

 Document e-signed by D. Teeken (dennis.teeken@pladisglobal.com)

Signature Date: 2025-06-04 - 16:05:29 GMT - Time Source: server- IP address: 193.37.181.249

 Agreement completed.

2025-06-04 - 16:05:29 GMT